

Sherwani Sugar Syndicate Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 November 2019 · WRIT - C No. - 37756 of 2019 · **Writ disposed; relegated to clause 6.5; restore on Rs 7 lakh deposit.**

HEADNOTE

A consumer writ seeking to quash an electricity bill and restore supply was not entertained on the merits. The Allahabad High Court held that a dispute as to correctness of the bill is to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer/appropriate authority. The petition was disposed of with a time-bound speaking-order direction and restoration of connection No. 781726734652 on deposit of Rs 7 lakh towards arrears, without adjudicating the bill.

FACTUAL SUMMARY

Sherwani Sugar Syndicate Ltd. and another, consumers of Dakshinanchal Vidyut Vitran Nigam Ltd., invoked the writ jurisdiction of the Allahabad High Court to quash a bill/notice dated 2 November 2019 issued by the distribution licensee and to restore electricity connection No. 781726734652. Their grievance was that the bill was incorrect. The Division Bench heard counsel for the petitioners and for the Electricity Department and perused the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-correctness dispute — statutory objection before Executive Engineer

HOLDING

A consumer disputing the correctness of an electricity bill must take the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer/appropriate authority; the High Court will not entertain a writ to quash the bill and restore supply while that remedy is available. The petition was disposed of with liberty to apply to respondent no. 3 within 15 days, to be decided by a speaking order after hearing, preferably within 30 days. On deposit of Rs 7 lakh towards arrears within 10 days, the connection was to be restored forthwith and no coercive action taken until the application was disposed of. Merits of the bill were not decided. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A consumer writ seeking to quash an electricity bill and restore supply was not entertained on the merits. The Allahabad High Court held that a dispute as to correctness of the bill is to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer/appropriate authority.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED BILL/NOTICE DATED 2.11.2019

Court expressly declined to adjudicate merits and left the billing dispute to the Executive Engineer/appropriate authority under clause 6.5. ¶ 1

